



Notification Waiver Determination

GPS Energy – Ryowa's interest in Gladstone Power Station Joint Venture

Acquisition	GPS Energy Pty Limited (GPS Energy), a wholly owned indirect subsidiary of Rio Tinto Aluminium (Holdings) Limited (RTAHL), applied for a notification waiver in respect of its proposed acquisition of the 7.125% minority interest held by Ryowa II GPS Pty. Limited (Ryowa) in the Gladstone Power Station Joint Venture (GPS JV), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	30 June 2026

Parties to the Acquisition	The GPS JV is an unincorporated joint venture that owns and operates the Gladstone Power Station, a coal-fired power station located in Gladstone, Queensland. The GPS generates electricity that is primarily supplied to Boyne Island Aluminium Smelter (the Smelter), as well as the National Electricity Market via its market facing participant, CS Energy, a Queensland government owned corporation. The GPS JV currently has 7 participants: a. GPS Energy (22.125%), b. GPS Power Pty. Limited (GPS Power) (20.00%), which is also a wholly owned subsidiary of RTAHL, c. Sunshine State Power B.V. (20.00%), d. Sunshine State Power (No. 2) B.V. (17.50%), e. Southern Cross GPS Pty Ltd (8.50%), f. Ryowa (7.125%), and g. YKK GPS (Queensland) Pty Ltd (4.75%). Rio Tinto Aluminium Limited (RTAL) is a wholly owned subsidiary of RTAHL and holds a majority interest in Boyne Smelters Limited, the incorporated joint venture that owns and operates the Smelter. RTAHL owns GPS Power, GPS Nominee Pty Limited (which owns GPS Energy), and RTAL. Both RTAL and RTAHL are subsidiaries of Rio Tinto Limited.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application, and

	had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: a. there is no horizontal consolidation or removal of a competitor as a result of the Acquisition b. the Acquisition does not appear to result in any substantive change in control or day-to-day operation of the Gladstone Power Station c. there is low risk of foreclosure or other concerning vertical effects arising from the Acquisition. The ACCC has also had regard to the likelihood that, if the Acquisition were put into effect, the notification thresholds determined under section 51ABP(1) of the Act would apply. While the ACCC considers that the notification thresholds are likely to be met, given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC’s approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC’s interim guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act